Supreme Court Case No. S299144

IN THE SUPREME COURT
OF THE STATE OF CALIFORNIA

FRANCISCUS DYLAN ROSARIO,
Plaintiff and Appellant,

v.

SUBHI ABDELHALIM et al.,
Defendants and Respondents.

After a Decision by the Court of Appeal,
First Appellate District, Division Three
Case No. A173827

San Francisco County Superior Court Case No. CGC-21-594102
Hon. Garrett L. Wong, Judge

APPLICATION FOR PERMISSION TO SUBSTITUTE THE CORRECTED PETITION

Supreme Court No. S299144

California Rules of Court, rule 8.50

Franciscus Dylan Rosario (IN PRO PER)
7624 Melody
Rohnert Park, CA 94928
P: 650.488.7510
E: SOLTRINOX@GMAIL.COM
Plaintiff and Appellant, Petitioner

Document received by the CA Supreme Court.

APPLICATION FOR PERMISSION TO SUBSTITUTE CORRECTED PETITION FOR REVIEW

(Cal. Rules of Court, rule 8.50)

Petitioner Franciscus Dylan Rosario requests permission to substitute the attached corrected petition for the petition filed October 15, 2026. Good cause appears because the corrected petition confines the principal issue to the ground actually used in the September 10, 2026 Court of Appeal opinion: a purported agreement with the trial judge's response to Jury Request No. 1. It expressly addresses the opinion's reliance on Rosario's mistrial motion, his use of the word "immaterial," and *People v. Bohana*, *Mary M. v. City of Los Angeles*, and *Stevens v. Owens-Corning Fiberglas Corp.* It also distinguishes the separate notice issue concerning Jury Request No. 2, corrects the complete wording of the jury's question, and requests review for transfer under rules 8.500(b)(4) and 8.528(d).

The corrected petition distinguishes the original proposed jury responses from the materially modified completed versions. According to Rosario and his legal team, both personally inspected the original formulations during the unreported morning consultation, and Judge Wong directed members of the assisting team to handle their exchange. The completed replies subsequently contained two material additions: the affirmative refusal to instruct in Reply No. 1 and the highway/street definition in Reply No. 2. Neither Rosario nor his legal team was afforded prior review and an opportunity to object to these completed, materially changed responses before jury delivery. Members of the team

Document received by the CA Supreme Court.

later examined the completed documents, identified the discrepancies, and informed Rosario. This application clarifies the limited object of any original agreement and the separate statutory notice question.

Disclosure under rule 8.50(b): Petitioner states that the original petition for review was filed on October 15, 2026. No prior application has been filed by any party in Supreme Court No. S299144.

Petitioner requests that the corrected petition be accepted as a substituted filing, subject to the Court's order.

Dated: October 19, 2026

Respectfully submitted,



FRANCISCUS DYLAN ROSARIO
Petitioner in propria persona

Document received by the CA Supreme Court.

TABLE OF CONTENTS

Table of Authorities 7

QUESTIONS PRESENTED 10

WHY REVIEW OR TRANSFER SHOULD BE GRANTED 11

I. RELEVANT CHRONOLOGY: THE ORIGINAL CHARGE, TWO WRITTEN RESPONSES, AND THE REPORTED CONFRONTATION 12

A. The Promised Completed Jury Charge Was Not Furnished to Rosario and His Legal Team; the Jury's Request Revealed the Missing Turning-Duty Instructions 12

B. The complete jury question asked the judge to provide law 16

C. The reported colloquy documented two kinds of objections before the verdict 19

II. THE OPINION'S "IMMATERIAL" AND MISTRIAL REASONING ASSIGNS THE OBJECTION TO THE WRONG OBJECT 19

A. The mistrial motion alleged outside access; it did not request withholding the driver's law 19

B. The opening acknowledgment concerned a different, earlier formulation 22

C. Bohana, Mary M., and Stevens require the actual consent or inducing act to be identified 24

Document received by the CA Supreme Court.

D. Rosario contemporaneously distinguished the original formulations from the completed responses before the verdict 25

III. THE OPINION'S OWN FLORES AND SESLER AUTHORITIES REQUIRE MERITS REVIEW AFTER CORRECT PRESERVATION ANALYSIS 28

IV. JURY REQUEST NO. 2 PRESENTS A SEPARATE SECTION 614 NOTICE AND TRANSMISSION QUESTION 31

A. The added highway/street wording mattered to the actual defense theory 31

B. The opinion did not separately decide the notice question 32

C. The afternoon answers identify the street sentence as the information given 33

V. NINE CONDENSED CORRECTIONS TO THE OPINION'S CONSENT ASSIGNMENT 35

VI. PRESERVATION, PREJUDICE, AND THE APPROPRIATE DISPOSITION 38

A. Section 647 prevents ordinary forfeiture but does not erase actual agreement 38

B. The Record Presents a Concrete Probability of Prejudice Under Soule 39

C. Proposed grant-and-transfer directions 42

Document received by the CA Supreme Court.

CONCLUSION 44

Document received by the CA Supreme Court.

TABLE OF AUTHORITIES

Cases

Cook v. Los Angeles Railway Corp. (1939)
13 Cal.2d 591 . . . . . 38, 43

Fillippon v. Albion Vein Slate Co. (1919)
250 U.S. 76 33

Flores v. Liu (2021) 60 Cal.App.5th 278 28, 30

Hurley v. California Department of Parks
& Recreation (2018) 20 Cal.App.5th 63428, 39

Lund v. San Joaquin Valley Railroad (2003)
31 Cal.4th 1 38

Mary M. v. City of Los Angeles (1991) 54
Cal.3d 202 . . . . . 11, 24, 38, 43

Metcalf v. County of San Joaquin (2008)
42 Cal.4th 1121 39

Nelson v. Southern Pacific Co. (1937) 8
Cal.2d 648 35

People v. Bohana (2000) 84 Cal.App.4th
360 . . . . . 11, 24, 38, 43

People v. Kelly (2006) 40 Cal.4th 106 . 33

Document received by the CA Supreme Court.

Sesler v. Ghumman (1990) 219 Cal.App.3d 218 . . . . . 28, 29

Soule v. General Motors Corp. (1994) 8 Cal.4th 548 . . . . . 30, 38, 39, 41, 42, 43, 44

Stevens v. Owens-Corning Fiberglas Corp. (1996) 49 Cal.App.4th 1645 . . . . . 11, 24, 38, 43

California Constitution

Cal. Const., art. I, §16 41

Cal. Const., art. VI, §13 39

Cal. Const., art. VI, §14 33

Statutes

Code Civ. Proc., §614 . . . . . 10, 12, 16, 29, 31, 32, 33, 35, 37, 38, 39, 43, 44

Code Civ. Proc., §647 . . . . . 10, 12, 25, 38, 43

Evid. Code, §310, subd. (a) 30

Evid. Code, §451, subd. (a) 30

Evid. Code, §664 33

Veh. Code, §360 . . . . . 17, 18, 31, 32, 33, 34, 37

Veh. Code, §670 17

Veh. Code, §21651, subd. (b) 14, 40

Document received by the CA Supreme Court.

Veh. Code, §21804, subd. (a) 14, 15, 16, 17, 18, 20, 23, 29, 30, 32, 40, 41

Veh. Code, §22107 . . . . . 14, 15, 16, 17, 18, 20, 23, 29, 30, 32, 36, 40, 41, 42, 43

California Rules of Court

Cal. Rules of Court, rule 8.137 26

Cal. Rules of Court, rule 8.155 . . . . . 28, 33, 43, 44

Cal. Rules of Court, rule 8.264 10

Cal. Rules of Court, rule 8.268 10

Cal. Rules of Court, rule 8.500 . . . . . 11, 12, 32, 42

Cal. Rules of Court, rule 8.504 . . . . . 11, 45

Cal. Rules of Court, rule 8.528 . . . . . 12, 42, 44

Instructions

CACI No. 705 . . . . . 29, 40, 42

Document received by the CA Supreme Court.

QUESTIONS PRESENTED

1. Scope of consent. Whether agreement concerning an original proposed jury response, personally reviewed by the litigant and his assisting legal team, constitutes consent to a materially modified completed response transmitted to the jury without either the litigant or his team receiving prior review and an opportunity to object to the changed wording.

2. Invited error. Whether a litigant's objection to suspected juror access to uninstructed law and subsequent mistrial motion establish consent to, or affirmative inducement of, the trial court's separate refusal to provide requested statutory instructions.

3. Statutory notice. Whether the prior review of proposed jury responses by the litigant and his court-directed assisting team satisfies Code of Civil Procedure section 614 when the judge subsequently makes material additions and transmits the completed responses without notice of the revised content before jury delivery, and whether consent to the original versions may be extended to those judicial revisions.

Rehearing and preservation. Petitioner filed a petition for rehearing on September 11, 2026, identifying the omitted second sentence of Jury Request No. 1, the disputed attribution of agreement, and preservation under Code of Civil Procedure section 647. The Court of Appeal did not rule on that petition before its decision became final on October 10, 2026 (rule 8.264(b)(1)), so rehearing was deemed denied that day (rule 8.268(c)). Its October 12, 2026 order denying rehearing did not modify

Document received by the CA Supreme Court.

the September 10, 2026 opinion. These matters were thereby brought to the Court of Appeal's attention before review. (Cal. Rules of Court, rules 8.500(c)(2), 8.504(b)(3).)

WHY REVIEW OR TRANSFER SHOULD BE GRANTED

The Court of Appeal held that Rosario "forfeited his claim by agreeing to the trial court's response to the jury's question." (Opn., pp. 2-3.) It relied on his mistrial motion, use of "immaterial," and *People v. Bohana* (2000) 84 Cal.App.4th 360, 372-373; *Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 212-213; and *Stevens v. Owens-Corning Fiberglas Corp.* (1996) 49 Cal.App.4th 1645, 1653. (Opn., p. 3.) **The opinion assigned consent to the completed refusal without distinguishing it from the earlier juror-use restriction Rosario had discussed.** His mistrial protest concerned suspected outside juror access, not a request that the court withhold Abdelhalim's turning-duty law.

Rosario and his legal team maintain that they inspected the initial proposed replies during the unreported morning consultation and that Judge Wong directed team members to exchange those documents. The completed replies sent to the jury contained two material additions: a refusal to instruct in Reply No. 1 and a highway/street explanation in Reply No. 2. Rosario and his legal team maintain they lacked prior review and an opportunity to object to either completed revision. The afternoon transcript records the completed texts and Rosario's objections; their firsthand account supplies the earlier wording and disclosure chronology.

Document received by the CA Supreme Court.

Review is warranted under rule 8.500(b)(1) to clarify the interaction of sections 614 and 647 with actual consent and invited error. Alternatively, rules 8.500(b)(4) and 8.528(d) permit grant-and-transfer for reconsideration of the scope of consent, the separate notice question insofar as preserved, and the merits and prejudice analysis pretermitted by the opinion. The requested relief does not require the Supreme Court to decide disputed unreported facts initially.

I. RELEVANT CHRONOLOGY: THE ORIGINAL CHARGE, TWO WRITTEN RESPONSES, AND THE REPORTED CONFRONTATION

The Parties and the Collision. Rosario brought this negligence action against Abdelhalim following a collision. The parties disputed vehicle contact and Rosario's status as a pedestrian or scooter operator. (8 RT 24:22-25; 94:16-95:6.)

A. The Promised Completed Jury Charge Was Not Furnished to Rosario and His Legal Team; the Jury's Request Revealed the Missing Turning-Duty Instructions

The defense's denial of contact stood against its own driver's recorded admissions, Rosario's closing account of a body-camera statement, and evidence of catastrophic physical injury. Rosario testified that Abdelhalim struck him while he was walking his scooter through a marked crosswalk, throwing him to the pavement and causing life-threatening thoracic injuries, including a collapsing lung. (8 RT 24:22-25; 31:11-12; 34:26-28.) Emergency transport took Rosario from Sutter to Zuckerberg San Francisco General Hospital's trauma unit, where he remained in intensive care for three days with a chest tube, collapsed lung, and

Document received by the CA Supreme Court.

fractured ribs. (8 RT 57:1-15; 58:3-10; 68:12-26; 69:4-7.) The court stated that no experts can testify with respect to causation and that medical-record contents are hearsay until shown otherwise. (7 RT 6:16-7:6.) Rosario later told the jury he did not have experts, that money is required for experts, and that people he failed to include on his documents were denied, including treating physicians, which he placed in the damages phase. (7 RT 51:20-52:5.)

Asked his speed right before the collision, Abdelhalim answered, "Five mile an hour when I turned to the right." (8 RT 120:17-26.) Asked what type of van he was driving and what color it was, he answered, "Ford Transit, a white color." (8 RT 122:4-6.) Rosario testified, while looking at the 911 record, that the call was "about 2:55," that the caller told the operator he hit Rosario with his truck and that it was "barely anything," and that the answer he recounted, when the caller was asked whether he had hit a pedestrian, was "yeah." (8 RT 34:17-23; 37:21-38:1.) An audio file was played for the jury. (8 RT 106:14-15; 8 RT 106:27-28.) Asked about the words "I barely hit him with anything," Abdelhalim answered "Correct" and then "No." (8 RT 108:3-10.) Asked "Was that your voice?", he answered "Yes. That is my voice." (8 RT 108:27-28.) The later question recited "I just hit him, hit him with barely anything" and asked whether that was his voice also. He answered "That is my voice." (8 RT 110:28-111:1.) He had told responding police that he merely discovered Rosario in the street and that no contact occurred. (8 RT 50:2-9; 7 RT 152:14-19.) In closing argument, Rosario described body-camera words from Mr. Roseman. He said, "The man in the van hit the guy," and the court overruled a misstates-the-testimony objec-

Document received by the CA Supreme Court.

tion. (10 RT 38:19-28.) In that closing he named "Dustin Roseman" (10 RT 56:17) and said, "That man in the van hit the guy who was laying on the ground." (10 RT 57:3-4.) Abdelhalim then denied contact under oath, denied having told 911 that he struck Rosario, and attempted to explain his recorded admissions as statements made out of fear. (8 RT 94:16-95:6; 128:8-18; 119:21-28.) **Rosario's description of the 911 recording, Abdelhalim's voice answers on the played audio, and Rosario's closing account of the body-camera statement were the contact facts set against the defense's no-contact theory.** Those circumstances were central to the factual dispute, but the jury's first special-verdict question required a separate determination: whether Abdelhalim was negligent.

Even if jurors credited evidence that Abdelhalim's vehicle struck Rosario, they still had to determine whether the admitted right turn was executed with reasonable safety. Vehicle Code section 22107 supplied the specific statutory standard for that determination. The collision evidence thus established the circumstances in which the jury needed to apply the turning-duty law, while the court's refusal to provide that law became directly relevant to the negligence verdict.

The court instructed the jury on general negligence and Vehicle Code section 21651(b), a statutory theory concerning Rosario's alleged conduct, but omitted Vehicle Code section 22107, which specifically governs the reasonable safety of a driver's turning maneuver. The charge also omitted section 21804(a), which addresses entry onto a highway from property or an alley and requires a separate determination of factual ap-

Document received by the CA Supreme Court.

plicability. (10 RT 16:1-18:15.) The CACI 700-710 submission, expressly identifying CACI 707 and 710, had been received on March 31 and April 21, 2025, and file-stamped April 22. (Super. Ct. doc. 09580112.) Judge Wong delivered the jury instructions out of numerical sequence and, after the jury retired, expressly undertook to number the pages and furnish copies. (10 RT 3:11-17; 66:4-6; 73:18-74:2.) **That promised completed charge was never furnished to Rosario or his legal team.** The court thereby deprived them of the written, organized charge necessary to identify and address the missing turning-duty provisions before the jury's deliberations exposed the omission. Section 22107 supplied the statutory reasonable-safety standard directly corresponding to Abdelhalim's admitted right turn and to the jury's subsequent request for legal guidance concerning his negligence. The potential application of section 21804(a) must be determined separately under its highway-entry requirements.

The resulting instructional void was created by the Court, not invited by Rosario. Having delivered the charge out of sequence and failed to furnish the promised completed jury instruction copy, the Court left Rosario and his legal team without the definitive written instructions actually supplied to the jury. It was the jury's subsequent question, not advance disclosure by the Court, that first alerted them to the missing turning-duty instructions. Rosario's ensuing objection addressed that preexisting failure: the jury had been left to discover and request governing law that the Court should have addressed in its charge. **An objection to jurors being forced to request omitted law cannot be converted into an agreement that the Court should con-**

Document received by the CA Supreme Court.

tinue withholding that law. Nor can the Court's own failure to furnish the completed charge fairly be recast as Rosario's informed acquiescence in its omissions. Such a construction transfers responsibility for the Court's instructional failure to the party deprived of the promised charge and transforms his protest against that failure into purported consent to perpetuate it.

B. The complete jury question asked the judge to provide law

Jury Request No. 1 asked, in full:

> "In considering the question of whether the defendant was negligent should we consider the provisions of Vehicle Code Sections 22107 and 21804(a). If so could we be instructed on those provisions?" (Super. Ct. doc. 09577565, p. 2.)

The opinion quoted the consideration inquiry but omitted the second sentence expressly requesting instruction. (Opn., p. 2.) The jury was asking the judge to identify and supply applicable legal guidance. Whether the statutory numbers came from a pleading, testimony, or other source is analytically different from whether jurors independently researched law. The complaint identified the provisions, and respondent acknowledged it as a possible source. (1 CT 44; ROB, pp. 13-14.)

Defense counsel's closing referred to the complaint filed years earlier. (10 RT 49:3-5.) That closing reference is a trial-related route for the complaint. The jury's question to the judge is a request for instruction under section 614. The court's later refusal is a separate judicial act. A request directed to the judge is the process contemplated by section

Document received by the CA Supreme Court.

614, not itself proof of unauthorized research.

Reply No. 1. According to Rosario and his legal team, the original proposed Reply No. 1 was inspected and discussed during the morning consultation. Rosario and members of the team personally reviewed its wording, including the restriction on jurors independently considering Vehicle Code provisions absent from their instructions. That is the reply he identifies: "I do agree with the first one, the response to number one: You may not consider it because it is not part of the instructions." (11 RT 4:8-10.) The completed Reply No. 1, marked 10:37 a.m., additionally declared that the court would not instruct on sections 22107 and 21804(a). (Super. Ct. doc. 09577565, p. 2; 11 RT 6:23-27.) Neither Rosario nor his legal team reviewed this materially modified completed version or had an opportunity to object to its additional refusal before jury delivery.

Reply No. 2. The parties supplied an original proposed Reply No. 2 containing the statutory definition of vehicle under Vehicle Code section 670. Rosario and members of his legal team personally reviewed that proposed wording during the morning consultation. According to their account, Judge Wong subsequently added the section 360 highway definition, including "Highway includes street," to the completed Reply No. 2, marked 10:46 a.m. (Super. Ct. doc. 09577565, p. 3; 11 RT 7:10-26.) Neither Rosario nor his legal team reviewed or had an opportunity to object to this materially expanded completed version before it was transmitted to the jury.

Discovery after jury delivery. According to Rosario and his legal

Document received by the CA Supreme Court.

team, after Judge Wong transmitted both completed replies to the deliberating jury, the courtroom clerk personally delivered copies of the completed documents to Rosario. His legal team then assisted him in examining and comparing them with the original formulations Rosario and multiple team members had inspected during the morning consultation. Their comparison identified the refusal to instruct on Vehicle Code sections 22107 and 21804(a) added to Reply No. 1 and the additional section 360 highway/street definition in Reply No. 2. Team members notified Rosario of these discrepancies.

Following that notification, according to their account, Rosario moved for a mistrial during the reported afternoon proceedings, alleging suspected juror access to outside information. (11 RT 3:12-22.) The clerk's delivery, comparison, discovery, and notification are Rosario and his legal team's firsthand account of the unreported sequence. The transcript records his subsequent challenge to the court's additions, his disagreement with the account of earlier acquiescence, and his reconstruction request. (11 RT 4:1-14; 8:7-12; 10:9-11:13.) The judge described the highway definition as potentially gratuitous, found no harm, and later invoked discretion to issue the responses. (11 RT 7:27-8:6; 11 RT 11:28-12:4.) Rosario maintains that the addition favored the defense; he contemporaneously challenged the enhancement and its transmission. (11 RT 8:7-12.)

Document received by the CA Supreme Court.

C. The reported colloquy documented two kinds of objections before the verdict

In the reported afternoon proceedings, Judge Wong addressed Rosario's mistrial motion before discussing Jury Request No. 3. (11 RT 3:9-11.) Defense counsel separately discussed the vehicle-definition issue and the request for another instruction, acknowledging that the latter was a request for judicial instruction. (11 RT 5:9-19.) Judge Wong then read and defended his completed refusal concerning Request No. 1 and his expanded definition concerning Request No. 2. (11 RT 6:16-8:6.) Following a recess, he announced that Rosario wished to record objections to **both** completed responses. (11 RT 10:4-7.) Rosario challenged the judge's account of prior agreement and requested reconstruction. (11 RT 10:9-11:13.) The court heard and overruled the objections. (11 RT 11:28-12:4; 13:1-9.) The jury returned a nine-to-three finding of no negligence by Abdelhalim. (11 RT 15:14-17; 16:1-7.)

II. THE OPINION'S "IMMATERIAL" AND MISTRIAL REASONING ASSIGNS THE OBJECTION TO THE WRONG OBJECT

A. The mistrial motion alleged outside access; it did not request withholding the driver's law

The opinion's material factual hook was its description of the mistrial motion as opposition to "the Vehicle Code" and the jury's consideration of it. (Opn., p. 3.) The reported source is more specific. Rosario began the afternoon hearing by moving for a mistrial on his stated belief that deliberating jurors had accessed information outside the authorized proceedings:

Document received by the CA Supreme Court.

> "I am requesting a mistrial on the grounds of Juror misconduct. I have reason to believe that one or more of the jurors accessed or relied on outside information -- specifically vehicle codes, which is immaterial -- which was not introduced into evidence. This undermines my rights of a fair trial and violates the Court's instruction that the Jury must decide the case solely on the evidence presented in Court. I respectfully move for a mistrial." (11 RT 3:12-22.)

Normalized legal meaning: The word "immaterial" appeared within Rosario's allegation about supposed *outside information*. It did not identify sections 22107 or 21804(a) by number or state that the duties governing Abdelhalim's right turn were legally irrelevant. Rosario suspected independent access; that allegation remained disputed, and the jury's written request alone does not establish misconduct. A challenge to the fairness of deliberations is not an affirmative request that the court refuse governing statutory instructions.

The distinction is clearer when Rosario challenged the very predicament he believed the original omission created. Judge Wong asked whether he objected to the instruction responding to Jury Request No. 1. (11 RT 4:15-17.) Rosario answered:

> "No. I have objection to the fact they were accessing or requesting all of them anyways. But in number one, you know, I understand what's going on here. They should not have been accessing external information or requesting Vehicle Code sections that were not presented during the

Document received by the CA Supreme Court.

trial in view of the evidence." (11 RT 4:18-25.)

Normalized legal meaning: The reported punctuation is preserved. Rosario's account assigns his objection to the necessity of jurors encountering and requesting legal guidance omitted from the original charge, together with his concern about possible outside access. His criticism of the fact they were *having to request* law should not be treated as an affirmative instruction to the judge to deny what they requested. Nor does his criticism of a juror request extinguish the separate judicial responsibility to determine what law applies. The adverse reading of "No" and "requesting" must be answered from the complete turn, not silently discarded; the operative question is what response or refusal those words actually approved.

The court then heard Rosario continue about Request No. 2 and a code he said the judge had supplied. (11 RT 4:26-5:8.) He later stated the two irregularities: "The jurors -- I just went over that, the jurors having access to extemporaneous information, first off; second off, you sending back enhancements to a testimony that was not in, and any of the enhancements or any of the evidence would be used in their assessment." (11 RT 13:17-22.) The first irregularity he stated is the jurors' access to extemporaneous information. The second is the judge sending back enhancements. Neither statement is a request that the judge refuse the turning instruction. The trial court and defense counsel likewise distinguished the first jury's request for instruction from the second jury's request for a vehicle definition. (11 RT 5:9-19; 7:10-26.) The appellate opinion's single "immaterial" characterization did not preserve the

Document received by the CA Supreme Court.

different acts, actors, and legal consequences reflected in this exchange.

A mistrial motion is a protest against alleged irregularities, although it does not categorically preclude a separate finding of tactical inducement in every case. **Here, invited error would require conduct by Rosario inducing the precise judicial refusal** that his appeal challenges. His allegation of compromised deliberations and his objection to added defense-related definitions do not themselves identify such conduct.

B. The opening acknowledgment concerned a different, earlier formulation

Rosario was retrospectively identifying the original version of Reply No. 1 discussed in the earlier consultation. He then contrasted that version with the completed response containing the judge's subsequent addition.

> "I do agree with the first one, the response to number one: You may not consider it because it is not part of the instructions. But when you added that into the second one, it caused this, because the Jury had to make the decision based upon the available evidence that was there." (11 RT 4:8-14.)

Normalized legal meaning: Rosario identifies "the first one" as the original formulation of Reply No. 1 personally reviewed by him and members of his legal team during the morning consultation. He interprets "the second one" as the materially modified completed version of that same reply, containing the additional judicial refusal to instruct.

Document received by the CA Supreme Court.

Their account places the initial review before completion of that refusal and the first examination of the revised writing after jury delivery.

This is Rosario's contextual construction of his recorded words. Judge Wong's immediately following question concerned Jury Request No. 1; the judge later read the completed refusal. (11 RT 4:15-17; 6:23-27.) The conversation also concerned the separate highway/street enhancement to Reply No. 2, which Rosario challenged at 11 RT 8:7-12. Whether "the second one" describes Version 2 of Reply No. 1 or Reply No. 2, the quoted acknowledgment itself identifies the original juror-use restriction, not an affirmative request for the later refusal.

The controlling question is whether consent attached to the original proposed restriction or to the materially different completed judicial ruling.

Judge Wong later supplied the operative wording of the completed first response:

> "You may not consider Vehicle Code Sections 22107 and or 21804 subdivision A, nor will the Court instruct the Jury on those provisions." (11 RT 6:23-27.)

That writing contained **Clause A**, a prohibition on the jurors' independent consideration, and **Clause B**, the court's affirmative refusal to instruct. Rosario and his legal team maintain that neither had the opportunity to examine and object to the completed, materially modified first reply containing Clause B before its delivery to the jury.

The opinion's forfeiture conclusion treats Rosario's retrospective refer-

Document received by the CA Supreme Court.

ence to the original version of Reply No. 1 as agreement with its completed second version. The version distinction is the difference between his acknowledgment of the original juror-use restriction and his challenge to the court's later additions. His subsequent objection to jurors having to seek Vehicle Code guidance addressed the instructional condition that resulted from the omitted provisions. He objected to the trial judge's failure to instruct the jury before deliberations, which, in his understanding, left jurors needing to seek legal guidance concerning the evidence. His objection to that resulting predicament is not an objection to supplying the instructions, and it is not consent to refusing them.

C. *Bohana*, *Mary M.*, and *Stevens* require the actual consent or inducing act to be identified

People v. Bohana (2000) 84 Cal.App.4th 360, 372-373, addresses consent to a deliberating-jury response following a recorded tactical position. *Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 212-213, holds that invited error requires conduct by the party that induces the error, and that the doctrine "does not apply when a party, while making the appropriate objections, acquiesces in a judicial determination." Rosario made those objections on the record. (11 RT 8:7-12; 10:9-11:22.) *Stevens v. Owens-Corning Fiberglas Corp.* (1996) 49 Cal.App.4th 1645, 1653, concerned instructions the appellant supplied or stipulated to and later attacked. The opinion below cited those principles, but they require identification of Rosario's conduct approving or inducing **the completed affirmative refusal in Clause B**. His mistrial motion alleging outside access and his acknowledgment of the existing restriction against jurors independently applying uninstructed law do not identify such con-

Document received by the CA Supreme Court.

duct.

Judge Wong independently justified the completed refusal because the statutes had not been evidence. (11 RT 6:23-7:9.) The defense defended it as a refusal of additional instruction and claimed no prejudice. (11 RT 5:15-19.) Judge Wong also stated that a response to Jury Request No. 1 had been presented before jury delivery. (11 RT 6:16-22.) Rosario and his legal team acknowledge the earlier consultation but maintain it concerned the initial formulation, not the completed refusal. Their account identifies the material additions and the courtroom clerk's later delivery of the completed writings.

The completed replies bear timestamps of 10:37 and 10:46 a.m. (Super. Ct. doc. 09577565, pp. 2-3.) Rosario's reported afternoon mistrial motion followed their transmission. (11 RT 3:12-22.) That later motion could not itself have induced a refusal already written and sent. The disputed morning consultation must instead be assessed for any actual agreement or tactical inducement concerning Clause B. Section 647 deems an instructional refusal excepted to; mere non-objection is different from knowing consent to the particular completed ruling.

D. Rosario contemporaneously distinguished the original formulations from the completed responses before the verdict

When Judge Wong later asserted that no objection had been made at the time the answers were completed, Rosario immediately contradicted that account:

> "That wasn't our understanding." (11 RT 10:12.)

Document received by the CA Supreme Court.

Normalized legal meaning: Rosario disputed the court's characterization of what the earlier consultation established, rather than denying that an earlier consultation occurred. His objection was that the prior discussions did not encompass the materially changed completed responses later transmitted to the jury. Rosario and his legal team identify two separate initial formulations and two completed versions containing additional judicial material. The dispute concerns the scope of the original understanding and the subsequent changes, not whether Judge Wong and the parties had communicated about the jury questions.

Rosario then identified an objection he said had been made outside the reporter's presence and requested reconstruction:

> "Right. So pursuant to California Rules of Court 8.137, the Plaintiff objects to Court statement that no objection was made to the Jury instructions. Given that outside the presence of the Court Reporter, Plaintiff did object to any language or materials sent back because the information was already common knowledge, was unnecessary to be defined, specifically also the one that was defined by yourself to the Jury themselves. The citation on -- more specifically, the citation on what constitutes a vehicle, I did object to that, and that is inaccurate also. So -- but the record does not reflect the Reporter's absence. So Plaintiff requests the record be corrected or supplemented pursuant to the Code of 8.137. I would like to either reconstruct the record or we

Document received by the CA Supreme Court.

file my objection for that." (11 RT 10:23-11:13.)

Normalized legal meaning: Rosario contemporaneously challenged the court's characterization of the unreported consultation and requested reconstruction. According to his account, members of his legal team handled the jury-response documents, personally inspected the original proposed versions, and subsequently compared the completed versions with those originals. The judge's subsequent overruling of the objections concerned the completed responses. (11 RT 11:28-12:4; 12:27-13:9.) It was not a settled statement of the unreported exchange.

The judge's later attribution of acquiescence to common knowledge involved the vehicle-definition issue, not simply refusal of the defendant's turning-duty law. After Judge Wong used the supposed common knowledge of the material as a ground for acquiescence (11 RT 10:13-19), Rosario specified what he meant:

> "The correction is that I objected to any of the material going back, the codes, because they were common knowledge; it wasn't necessary for anything to be sent back to the Jury, anything, any kind of clarification of vehicles, anything like that. It was unnecessary. I stated that. It was all common knowledge." (11 RT 11:16-22.)

Normalized legal meaning: Rosario's common-knowledge position opposed unnecessary statutory explanation of *vehicle* and the added vehicle/highway clarification; it did not express agreement that the judge should refuse to instruct on the defendant's statutory turn. A reason the

Document received by the CA Supreme Court.

judge invoked to characterize earlier acquiescence was, in Rosario's contemporaneous account, a reason for objecting to supplementation. The two accounts concern the same topic but assign his statement opposite consequences.

Defense counsel, invited to add to the judge's account, responded that she had nothing to add. (11 RT 11:26-27.) That response neither supplies a separate eyewitness description of Rosario approving Clause B nor determines which completed language Rosario and his legal team actually saw before delivery. Judge Wong then stated that the objections to both replies were considered and overruled. (11 RT 12:27-13:9.) The reported record thus contains the judge's account, Rosario's contrary account, defense counsel's limited response, and the ensuing ruling. That is the record to be assessed, with any necessary settlement requested under rule 8.155(c)(2), not a basis for converting a disputed reconstruction into uncontested consent.

III. THE OPINION'S OWN *FLORES* AND *SESLER* AUTHORITIES REQUIRE MERITS REVIEW AFTER CORRECT PRESERVATION ANALYSIS

The Court of Appeal recognized the governing duty: *Flores v. Liu* (2021) 60 Cal.App.5th 278, 289, requires necessary supplemental instructions to give the jury an accurate understanding of law applicable to the facts, and *Sesler v. Ghumman* (1990) 219 Cal.App.3d 218, 226-227, emphasizes the importance of proper instructions when a jury asks questions revealing confusion. (Opn., pp. 2-3.) It also cited the ordinary civil requirement that litigants propose instructions. (*Hurley v. California*

Document received by the CA Supreme Court.

Department of Parks & Recreation (2018) 20 Cal.App.5th 634, 655.) These authorities regulate different stages of the case and must be applied to the actual ruling under challenge.

The original charge contained general negligence instructions. The jury's subsequent written inquiry demonstrated that it wanted a legal determination concerning sections 22107 and 21804(a), especially the defendant's safe-turning duty. The court's completed first response affirmatively refused to instruct on those sections. (10 RT 16:1-18:15; Super. Ct. doc. 09577565, p. 2; 11 RT 6:23-27.) An asserted defect in tendering a complete instruction before deliberations is relevant to the original-charge issue; it does not erase the separate, documented refusal responding to the jury's question. The particular statute's applicability, the adequacy of general negligence language, and whether the completed answer satisfied section 614 required analysis that the consent holding prevented.

The original charge supplied a general reasonable-care standard. Vehicle Code section 22107 states the safety requirement for the turning maneuver. CACI No. 705 states that this statutory duty is one of reasonable care, and its directions say to give it when section 22107 is given and to place it after that provision. The jury asked to be instructed on section 22107. The question is whether the general negligence charge stated that turning standard. The Court of Appeal did not decide that question. It concluded Rosario had consented to the refusal.

Sesler involved a properly requested, evidence-supported tailored instruction that the trial court refused even after a jury question; that

Document received by the CA Supreme Court.

materially supports the importance of a specific answer, while leaving factual and preservation differences for consideration. *Flores* considered a supplemental instruction that was erroneous but found the error harmless on that record. Thus neither decision commands reversal merely because a jury asked for more law. **Together, they support review of whether the actual refusal was an appropriate answer and, if erroneous, whether it was prejudicial under *Soule*.** This is the work the Court of Appeal did not reach because of its conclusion that Rosario had consented.

The judge's separate legal explanation reinforces why merits review matters. In defending the no-instruction clause, Judge Wong reasoned: "neither Vehicle Codes Section 22107 nor 21804 subdivision A were part of the evidence." (11 RT 7:4-9.) Under Evidence Code sections 310 and 451(a), the judge determines questions of law and must take judicial notice of California public statutory law. A statute need not have been admitted into evidence for the judge to consider its applicability. The court may still conclude that a provision is unsupported by the evidence or otherwise inappropriate, but the refusal must be tested against the correct legal question. Section 22107 concerns whether the defendant's right turn could be made with reasonable safety. Section 21804(a) must be evaluated separately according to its entry-from-property-or-alley predicates. The court's generalized statement that the statutes were not evidence did not supply that differentiated determination.

The applicable-law question is whether the evidence called for section 22107 and whether the charge already given stated it.

Document received by the CA Supreme Court.

IV. JURY REQUEST NO. 2 PRESENTS A SEPARATE SECTION 614 NOTICE AND TRANSMISSION QUESTION

A. The added highway/street wording mattered to the actual defense theory

As set out in Section I.B, Rosario and his legal team maintain that Judge Wong added the section 360 highway definition to the party-supplied vehicle definition and transmitted completed Reply No. 2 without prior review or an opportunity to object. That modification is the subject of Rosario's section 614 notice contention.

In the discussion of the completed second response, Rosario specifically challenged the addition and its transmission:

> "Inaccurate, Your Honor. You enhanced it by adding that highways also indicates street. That is not in the actual black-letter law. You enhanced the statement and you sent that back. That is a direct influence over the Jury." (11 RT 8:7-12.)

Normalized legal meaning: Rosario attributed the additional highway/street proposition and its transmission to Judge Wong. Although Vehicle Code section 360 does contain that proposition, statutory accuracy does not resolve whether the wording had been part of what Rosario and his legal team were shown for review before the completed second response reached the jurors. His objection was to the post-discussion enhancement and its possible influence on the jury's assessment, not an invitation to withhold turning-duty instructions from the first response.

Document received by the CA Supreme Court.

The addition was not abstract. The defense maintained that Rosario had been operating a scooter as a vehicle, while Rosario testified he was walking it in the crosswalk. (8 RT 24:22-23; 7 RT 150:11-14.) The additional definition linked "highway" in the vehicle definition to the city street where the collision occurred. It could assist the defense in arguing the scooter fell within the statutory concept of a vehicle, though it did not independently establish that Rosario was *operating* one at the moment of impact. This difference between legal classification and factual operation is material to evaluation of any instructional prejudice.

B. The opinion did not separately decide the notice question

The appellant's opening brief discusses the trial court's supply of the Vehicle Code section 360 definition after the court prohibited consideration of sections 22107 and 21804(a) as not in evidence. (AOB, A173827, pp. 19-20, 26.) His rehearing petition likewise identified the vehicle and highway definitions and the disputed consultation. (Pet. for Rehg., pp. 15-16.) Those submissions placed the section 360 definition within the contested April 23 jury communications. The separate pre-delivery notice issue is presented for independent review insofar as its specific procedural ground was timely raised in the Court of Appeal. Reply No. 2 also informs the scope of purported consent regarding both responses. (Cal. Rules of Court, rule 8.500(c)(1).)

Section 614 requires legal information furnished to deliberating jurors to be given in the presence of, or after notice to, the parties or counsel. Rosario and his legal team maintain that they reviewed the initial proposed responses, but Judge Wong subsequently added material language

Document received by the CA Supreme Court.

and transmitted the completed versions without giving Rosario notice of those revisions and an opportunity to object before jury delivery. Rosario was self-represented; team members assisted him as firsthand witnesses, not as counsel of record.

Fillippon v. Albion Vein Slate Co. (1919) 250 U.S. 76, 80-82, addresses the importance of participation before supplemental legal information reaches jurors. Judge Wong's recital of prior presentation named only Jury Request No. 1 (11 RT 6:16-22, quoted in Section IV.C); Rosario and his legal team identify that presentation as concerning an earlier formulation, and Rosario immediately contested it. (11 RT 10:9-11:13.) By contrast, when addressing Jury Request No. 3, the judge offered a chance to object before completing the answer. (11 RT 9:7-8.)

The September 10 opinion did not separately analyze the section 360 addition and section 614 notice issue. (Opn., pp. 2-4.) Although article VI, section 14 does not require discussion of every argument (*People v. Kelly* (2006) 40 Cal.4th 106, 120), the separate statutory question warrants evaluation insofar as preserved. Any presumption of regular official performance (Evid. Code, § 664) must be assessed against the competing accounts. Rule 8.155(c)(2) permits the reviewing court to direct settlement of a material record omission or error.

C. The afternoon answers identify the street sentence as the information given

Jury Request No. 2 asked for a relevant legal definition of "vehicle" to consider in assessing the testimony. (11 RT 7:10-14.) The court read a vehicle definition that uses the word highway, and then read Vehicle

Document received by the CA Supreme Court.

Code section 360, including "'Highway' includes street." (11 RT 7:16-26.)

After reading the completed definition, Judge Wong described the additional statutory material and explained his view that it caused no prejudice:

> "even if this was something that was gratuitous on the part of the Court, the Court is defining something that is the word 'vehicle' for the purpose of the jury's use in this matter. I find no harm nor prejudice against either party in this case. It is simply a neutral definition coming from the Vehicle Code which defines vehicle and highway." (11 RT 7:27-8:6.)

Rosario named the same act as an enhancement the court had sent. (11 RT 8:7-12, quoted in Section IV.A.)

Normalized legal meaning: Rosario challenged the completed Reply No. 2's additional highway/street definition and its transmission. Judge Wong identified its statutory source and defended it as neutral; Rosario and his legal team maintain that the original party-reviewed formulation did not contain this addition. Whether the added language accurately quotes section 360 and whether notice of the completed modification preceded jury delivery are separate questions.

The court answered with the code book: "Sir, do you want to take a look at this code section? It says, 'Highway includes street.'" (11 RT 8:13-16.) The court overruled the objections and stated that it was within the court's discretion to issue these responses in order to clarify issues

Document received by the CA Supreme Court.

the jury had raised. (11 RT 11:28-12:4.)

The presentation recital in that hearing names Jury Request No. 1: "The Court presented that response in Jury request number one to each party before delivering it to the Jury. You've waived that request, sir." (11 RT 6:19-22.) Rosario's response, "That wasn't our understanding," is discussed in Section II.D. (11 RT 10:12.)

The section 614 notice requirement set out in Section IV.B applies to completed Reply No. 2, which included the highway/street explanation the judge defended as possibly gratuitous. His recorded claim of prior presentation specifically identified Reply No. 1; his answers concerning Reply No. 2 addressed the code text, absence of harm, and discretion to issue the responses. The remaining question concerns notice of the additional completed wording before its transmission, separate from its statutory accuracy or asserted neutrality.

Nelson v. Southern Pacific Co. (1937) 8 Cal.2d 648, 655, identifies the interest protected when a court communicates with a deliberating jury by a method other than the one section 614 prescribes. Judge Wong's statement that the added highway and street definition caused no prejudice addressed his assessment of the content supplied. (11 RT 8:3-6.) The separate statutory question is whether the completed material was communicated after the required notice.

V. NINE CONDENSED CORRECTIONS TO THE OPINION'S CONSENT ASSIGNMENT

1. Agreement attached to the entire response.

Document received by the CA Supreme Court.

Rosario's recorded acknowledgment identified the original juror-use restriction discussed during the unreported consultation. He and his legal team maintain that the completed second version added the refusal to instruct and was transmitted before they had prior review and an opportunity to object to that material change. The consent inquiry must identify which version Rosario approved. (11 RT 4:8-14; 6:16-27; 10:9-12.)

2. The jury merely asked whether to consider statutes.

The actual written note continued with an express request that the judge instruct the jury. (Super. Ct. doc. 09577565, p. 2.)

3. The opinion characterized the mistrial as arising because the jury mentioned the Vehicle Code sections.

The mistrial motion alleged outside access; the jury's request to the judge was lawful and, without more, did not establish independent research. (11 RT 3:12-22; 7:1-3.)

4. The word "immaterial" rejected all statutory duties.

The word appeared inside Rosario's outside-information mistrial allegation; it did not expressly identify section 22107 as irrelevant to Abdelhalim's turn. (11 RT 3:15-18.)

5. "No" and criticism of requests meant approval of withholding.

Rosario's initial acknowledgment concerned the first formulation of Re-

Document received by the CA Supreme Court.

ply No. 1. His immediately following words identified an objection to the resulting instructional predicament, as explained in Section II.B. (11 RT 4:8-25.)

6. The opinion relied on the mistrial motion in its consent reasoning.

The completed written refusal preceded the afternoon mistrial exchange; inducing conduct must be identified separately in the disputed morning conference. (Super. Ct. doc. 09577565, p. 2; 11 RT 2:5-7; 6:16-22.)

7. "Common knowledge" showed acquiescence.

Rosario's common-knowledge objection concerned supplementation of the original, party-provided vehicle definition in Reply No. 2. The completed response added highway and street law beyond that original wording. (11 RT 10:13-11:22.)

8. The trial court characterized the added definitions as neutral and without prejudice. The opinion did not separately decide the section 614 notice issue on completed Reply No. 2.

According to Rosario and his legal team, the party-provided vehicle definition omitted the section 360 highway/street explanation later appearing in completed Reply No. 2. Judge Wong defended the content's accuracy and neutrality; Rosario objected to its enhancement and transmission. Section 614 concerns notice of the completed legal addition, distinct from its accuracy. (11 RT 7:22-8:17; 11:28-12:4.)

9. Agreement eliminated need for harmless-error review.

Document received by the CA Supreme Court.

Bohana, *Mary M.*, and *Stevens* require attention to actual consent or inducing conduct. If the threshold is corrected, section 614 and *Soule* require merits and prejudice analysis of the specific rulings. (Opn., pp. 2-4; 11 RT 6:23-7:9.)

These are corrections to the *objects assigned to statements and rulings*, rather than nine new, freestanding issues. They are offered to identify the precise erroneous inference on which the opinion's threshold holding rests.

VI. PRESERVATION, PREJUDICE, AND THE APPROPRIATE DISPOSITION

A. Section 647 prevents ordinary forfeiture but does not erase actual agreement

Code of Civil Procedure section 647 deems the giving, refusal, or modification of an instruction excepted to. In *Cook v. Los Angeles Railway Corp.* (1939) 13 Cal.2d 591, 593-594, this Court applied that protection to a supplemental instruction given during deliberations; *Lund v. San Joaquin Valley Railroad* (2003) 31 Cal.4th 1, 7, likewise distinguishes legally erroneous instructions from merely incomplete instructions requiring a request for clarification. The Court of Appeal's opinion rested on attributed agreement, rather than on failure to voice a formal exception. The petition therefore invokes section 647 against ordinary non-objection forfeiture **and** disputes the separate factual premise of knowing approval or tactical inducement of the completed refusal. This directly confronts *Bohana*, rather than suggesting section 647 automatically overrides actual consent.

Document received by the CA Supreme Court.

The original-charge question is distinct. Civil litigants normally must propose proper tailored instructions. (*Hurley v. California Department of Parks & Recreation* (2018) 20 Cal.App.5th 634, 655; *Metcalf v. County of San Joaquin* (2008) 42 Cal.4th 1121, 1130-1131.) The request on file is the packet Rosario and his legal team submitted, set out in Section I.A. The claim in this petition is the later written refusal after the jury asked to be instructed. The original selection and the subsequent section 614 inquiry must be evaluated at their respective stages.

B. The Record Presents a Concrete Probability of Prejudice Under *Soule*

Under article VI, section 13 of the California Constitution and *Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, 574, 580-581, prejudice from a civil instructional error must be evaluated in the context of the entire trial record. The inquiry considers the state of the evidence, the effect of other instructions, counsel's arguments, and indications from the jury itself that the instructions left a material legal issue unresolved.

The state of the evidence made the safety of Abdelhalim's turn a central negligence question. As set out in Section I.A, the evidence included Abdelhalim's admission that he was turning right, the 911 recording, Abdelhalim's voice identifications, and the body-camera statement. (8 RT 34:17-38:1; 106:14-111:1; 120:17-26; 10 RT 38:19-57:4.) Rosario testified that he was walking his scooter through the marked crosswalk, while the defense disputed contact and maintained that Rosario was operating the scooter rather than walking as a pedes-

Document received by the CA Supreme Court.

trian. (8 RT 24:22-25; 94:16-95:6.)

These competing accounts required the jury to distinguish whether the vehicle struck Rosario from whether Abdelhalim exercised reasonable care while turning. Abdelhalim's right turn supplied the conduct to be evaluated. **Section 22107 was directly relevant to the second question because it governed whether the turn could be made with reasonable safety.**

The other instructions did not expressly identify that particular statutory duty. The jury received general negligence instructions and a Vehicle Code section 21651(b) theory concerning Rosario's alleged conduct. (10 RT 16:1-18:15.) It received no corresponding section 22107 instruction concerning Abdelhalim's turn. CACI No. 705 explains that a driver's turning duty remains one of reasonable care, rather than imposing a higher standard of liability. The issue therefore was not whether section 22107 made every collision negligent. It was whether the jury received adequate guidance to evaluate the actual turning maneuver under the governing statutory reasonable-safety standard.

The completed first jury response went further than merely declining to supply additional text: it expressly prohibited the jury from considering sections 22107 and 21804(a) and announced that the court would not instruct on them. (Super. Ct. doc. 09577565, p. 2; 11 RT 6:23-27.) The completed second response simultaneously supplied additional vehicle and highway definitions relevant to the defense's characterization of Rosario as a scooter operator. (11 RT 7:10-8:12.) That difference in the specific statutory guidance supplied to the jury bears upon the

Document received by the CA Supreme Court.

probable effect of the refusal concerning Abdelhalim's turning duty.

Counsel's arguments reinforced the significance of the omitted statutory guidance. Defense counsel characterized Abdelhalim's maneuver as a lawful right turn while arguing that Rosario traveled in the wrong direction and failed to yield. (10 RT 54:16-24.) The legal permissibility of making a right turn is distinct from whether the driver executed that turn with reasonable safety under the circumstances. Section 22107 addressed that latter question. Without the requested guidance, the jury was left to evaluate the defendant's maneuver under the general negligence charge despite having expressly sought a specific determination concerning the applicable turning statute.

The jury itself identified the precise instructional uncertainty. Its written request asked whether sections 22107 and 21804(a) should be considered when deciding whether Abdelhalim was negligent and expressly requested instruction on those provisions if applicable. (Super. Ct. doc. 09577565, p. 2.) This was a question concerning the law governing the first special-verdict issue, not a generalized request for background information. The jury's request is therefore a direct indication, relevant under *Soule*, that the jurors sought legal guidance beyond the instructions already supplied.

The verdict rested on the minimum civil-jury concurrence. The first special-verdict question asked whether Abdelhalim was negligent. The jury answered no by nine votes. (11 RT 15:14-17; 16:1-7.) Under article I, section 16 of the California Constitution, nine concurring votes satisfy the three-fourths requirement for a twelve-person civil jury. A

Document received by the CA Supreme Court.

change in one vote would have prevented that same answer from satisfying the required concurrence. The voting margin does not itself establish prejudice, but it is significant when evaluated alongside the contested evidence, the omitted turning-duty instruction, counsel's argument, and the jury's express request for guidance.

The causal prejudice question is therefore concrete: **whether supplying the requested section 22107 instruction, together with the clarification contemplated by CACI No. 705, would have produced a reasonable probability of a more favorable finding on Abdelhalim's negligence.** The evidence established a factual dispute over the collision and the safety of the defendant's turn; the jury specifically requested the statutory turning duty; the court refused it while supplying other Vehicle Code definitions; and the resulting defense finding received exactly nine votes.

These circumstances require the record-specific prejudice analysis prescribed by *Soule*. The Court of Appeal did not undertake that analysis because it attributed agreement with the completed refusal to Rosario. Correcting the consent determination would require the reviewing court to reach the merits of the supplemental-instruction refusal and, if error is established, evaluate its effect on the negligence verdict.

C. Proposed grant-and-transfer directions

Petitioner requests review and transfer under California Rules of Court, rules 8.500(b)(4) and 8.528(d), for reconsideration of whether consent concerning an original proposed supplemental jury response extends to a materially changed completed reply. The inquiry must distinguish the

Document received by the CA Supreme Court.

original wording reviewed by Rosario and his legal team, the judge's added language, the timing of transmission, and any conduct establishing actual consent or invited error. If the unreported consultation or disclosure sequence presents a material dispute about the appellate record's accuracy or completeness, the reviewing court may direct record-settlement proceedings under rule 8.155(c)(2).

The Court of Appeal should then determine whether section 614 required additional instruction concerning section 22107, address the second-response notice issue insofar as preserved, and undertake any necessary prejudice analysis under *Soule*.

Proposed order:

> The petition for review is granted. The cause is transferred to the Court of Appeal, First Appellate District, Division Three, with directions to vacate its September 10, 2026 decision and reconsider the consent and forfeiture analysis, distinguishing the originally discussed or supplied responses from the completed, materially modified responses transmitted to the jury, in light of Code of Civil Procedure section 647; *Cook v. Los Angeles Railway Corp.* (1939) 13 Cal.2d 591; *People v. Bohana* (2000) 84 Cal.App.4th 360; *Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202; *Stevens v. Owens-Corning Fiberglas Corp.* (1996) 49 Cal.App.4th 1645; and the complete written jury request. The Court of Appeal shall address the section 614 supplemental-instruction and, if properly preserved, response-

Document received by the CA Supreme Court.

notice contentions, including any necessary record settlement under rule 8.155(c)(2), and conduct appropriate prejudice review under *Soule v. General Motors Corp.* (1994) 8 Cal.4th 548. (Cal. Rules of Court, rule 8.528(d).)

CONCLUSION

The Court of Appeal attributed consent to the completed refusal without distinguishing it from the original restriction reviewed by Rosario and his legal team. According to their account, Judge Wong materially expanded both responses and transmitted the completed writings without affording Rosario and his legal team prior review and an opportunity to object. The courtroom clerk subsequently delivered copies; team members compared them with the earlier versions, discovered the additions, and notified Rosario. The transcript records the completed language and Rosario's objections and reconstruction request. Petitioner requests review and transfer to reconsider the consent-based forfeiture holding, the preserved section 614 questions, and the merits and prejudice issues.

DATED: October 19, 2026

Respectfully submitted,



Franciscus Dylan Rosario
Plaintiff and Appellant, in pro. per.
7624 Melody
Rohnert Park, CA 94928
P: 650.488.7510
E: SOLTRINOX@GMAIL.COM

Document received by the CA Supreme Court.

CERTIFICATE OF WORD COUNT

California Rules of Court, rule 8.504(d)(1).

This Petition for Review contains **8200** words. The count runs from Questions Presented through the conclusion and excludes the tables, this certificate, the signature block, and the attachments.

DATED: October 19, 2026



Franciscus Dylan Rosario
Plaintiff and Appellant, in pro. per.
7624 Melody
Rohnert Park, CA 94928
P: 650.488.7510
E: SOLTRINOX@GMAIL.COM

Document received by the CA Supreme Court.

ATTACHMENT A

Court of Appeal opinion filed September 10, 2026, No. A173827.

Document received by the CA Supreme Court.

Court of Appeal, First Appellate District
Charles D. Johnson, Clerk/Executive Officer
Electronically FILED on 9/10/2026 by G. King, Deputy Clerk

Filed 9/10/26

NOT TO BE PUBLISHED IN OFFICIAL REPORTS

California Rules of Court, rule 8.1115(a), prohibits courts and parties from citing or relying on opinions not certified for publication or ordered published, except as specified by rule 8.1115(b). This opinion has not been certified for publication or ordered published for purposes of rule 8.1115.

IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA

FIRST APPELLATE DISTRICT

DIVISION THREE

FRANCISCUS DYLAN ROSARIO, Plaintiff and Appellant, v. SUBHI ABDELHALIM et al., Defendants and Respondents.	A173827 (City and County of San Francisco Super. Ct. No. CGC-21-594102)

Franciscus Dylan Rosario sued Subhi Abdelhalim and Sonoma Liquor, alleging Abdelhalim caused him injury by negligently driving a vehicle; a jury concluded to the contrary. On appeal, Rosario argues the trial court erred by answering a jury question during its deliberations. We affirm.

BACKGROUND

In July 2021, Rosario sued Abdelhalim. Rosario alleged Abdelhalim negligently struck him and his scooter while Abdelhalim was making a right turn in his vehicle.

At trial, Abdelhalim testified his truck was moving about five miles per hour as it turned. Before the turn, he looked in the side view mirror and in front of him and did not see any pedestrians, scooters, or bicyclists. He did not feel any impact. After the turn, he pulled over because he heard someone yelling for help. When he exited the vehicle, he noticed Rosario yelling at him. Abdelhalim called 911. He did not see any marks on the vehicle. A

Document received by the CA Supreme Court.

police officer testified the scooter and vehicle sustained no damage, and Rosario caused the collision by driving the scooter against the flow of traffic.

During the jury's deliberations, it asked the trial court, "in considering the question of whether the defendant was negligent should we consider the provisions of Vehicle Code sections 22107 and 21804(a)[?]" (Italics and some capitalizations omitted.) With the agreement of the parties, the court responded, "You may not consider Vehicle Code sections 22107 and/or 21804(a) nor will the court instruct the jury on those provisions." (Italics omitted.) After the court issued its response to the jury, Rosario moved for a mistrial because the jury mentioned the sections. The court denied the motion. The jury concluded Abdelhalim was not negligent.[1]

DISCUSSION

Relying on Code of Civil Procedure section 614, Rosario contends the trial court erred by not instructing the jury on Vehicle Code section 22107 after it submitted its question. He forfeited the contention.

Ordinarily, a " 'civil litigant must propose complete instructions in accordance with his or her theory of the litigation and a trial court is not 'obligated to seek out theories [a party] might have advanced, or to articulate for him that which he has left unspoken." ' " (*Hurley v. Department of Parks & Recreation* (2018) 20 Cal.App.5th 634, 655.) But "[t]rial courts are duty bound to give supplemental instructions if additional guidance is necessary to give the jury ' "a full and complete understanding of the law applicable to the

[1] We grant Rosario's unopposed motion for judicial notice. We deny as unnecessary his motion to disregard or strike passages of the respondent's brief and his application to file a reply brief with respect to that motion. To the extent Abdelhalim's brief contains factual assertions unsupported with record citations, we disregard them. (*Tanguilig v. Valdez* (2019) 36 Cal.App.5th 514, 520.)

Document received by the CA Supreme Court.

facts.” ’ ” (*Flores v. Liu* (2021) 60 Cal.App.5th 278, 289; Code Civ. Proc., § 614.) The “failure to provide legal instructions in response to a jury’s question may be reversible error under certain circumstances.” (*Eng v. Brown* (2018) 21 Cal.App.5th 675, 706, fn. 9.) For example, when “original instructions are inadequate, and the jury asks questions indicating their confusion and need for further explanation, failure to give proper additional instructions is usually reversible error.” (*Sesler v. Ghumman* (1990) 219 Cal.App.3d 218, 227.) “ ‘An appellate court applies the abuse of discretion standard of review to any decision by a trial court to instruct, or not to instruct, in its exercise of its supervision over a deliberating jury.’ ” (*People v. Fleming* (2018) 27 Cal.App.5th 754, 765.)

Rosario forfeited his claim by agreeing to the trial court’s response to the jury’s question. (*People v. Bohana* (2000) 84 Cal.App.4th 360, 373 [“[w]here . . . appellant consents to the trial court’s response to jury questions during deliberations, any claim of error with respect thereto is waived”].) Indeed, his position was that the Vehicle Code was “immaterial,” and the jury’s consideration of it would be grounds for a mistrial. As the case law he cites indicates, he cannot now claim that response was error. (*Ibid.*; *Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 212 [“Under the doctrine of invited error, when a party by its own conduct induces the commission of error, it may not claim on appeal that the judgment should be reversed because of that error”]; *Stevens v. Owens-Corning Fiberglas Corp.* (1996) 49 Cal.App.4th 1645, 1653 [invited error doctrine “bars an appellant from attacking a verdict that resulted from a jury instruction given at the appellant’s request”].)

Rosario also advances two other arguments but indicates he does so “solely to defeat harmlessness claims.” Given our conclusion above, we need

Document received by the CA Supreme Court.

not evaluate whether the alleged error was harmless. (*People v. Mora and Rangel* (2018) 5 Cal.5th 442, 505.)

DISPOSITION

The judgment is affirmed. Abdelhalim is to recover his costs on appeal. (Cal. Rules of Court, rule 8.278(a)(2).)

Document received by the CA Supreme Court.

RODRÍGUEZ, J.

WE CONCUR:

FUJISAKI, Acting P. J.

PETROU, J.

A173827; *Rosario v. Abdelhalim et al.*

Document received by the CA Supreme Court.

Attachment B: Jury Request and Reply No. 1 (09577565)

Document received by the CA Supreme Court.

SUPERIOR COURT OF CALIFORNIA
County of San Francisco

Honorable **GARRETT L. WONG**, Judge Presiding
Department 504

FRANCISCUS DYLAN ROSARIO PLAINTIFF VS. SUBHI ABDELHALIM et al DEFENDANT	Case Number: CGC-21-594102 JURY REQUEST FORM # 1

WE, the Jury in the above-entitled action, request the following:

In considering the question of whether the defendant was negligent should we consider the provisions of Vehicle Code Sections 22107 and 21804(a). If so could we be instructed on those provisions?

This 23rd day of April, 2025

Time: 10:09

Presiding Juror
Douglas M Young

COURT Response:

You may not consider Vehicle Code sections 22107 and/or 21804(a) nor will the court instruct the jury on those provisions.

This 23rd day of April, 2025

Time: 10:37 A.M.

Hon. Garrett L. Wong
Judge of the Superior Court

Document received by the CA Supreme Court.

Attachment B: Jury Request and Reply No. 2 (09577565)

Document received by the CA Supreme Court.

SUPERIOR COURT OF CALIFORNIA
County of San Francisco

Honorable **GARRETT L. WONG**, Judge Presiding
Department 504

FRANCISCUS DYLAN ROSARIO PLAINTIFF VS. SUBHI ABDELHALIM et al DEFENDANT	Case Number: CGC-21-594102 JURY REQUEST FORM # 2

WE, the Jury in the above-entitled action, request the following:

Officer Fernandez testified that a scooter is a vehicle if it is being riden, but that one pushing a scooter is considered to be a pedestrian. Is there a relevant legal definition of "vehicle" that we should consider in assessing this testimony?

This 23rd day of April, 2025

Time: 10:09

Presiding Juror
Douglas M Young

COURT Response:

Vehicle Code section provides: "A 'vehicle' is a device by which any person or property may be propelled, moved or drawn upon a highway, excepting a device moved exclusively by human power or used exclusively upon stationary rails or tracks." Vehicle Code section 360 defines "highway" as "a way or place of whatever nature, publicly maintained and open to the use of the public for purposes of vehicular travel. Highway includes street."

This 23 day of April, 2025

Time: 10:46 A.M.

Hon. Garrett L. Wong
Judge of the Superior Court

Document received by the CA Supreme Court.

Attachment: Clerk Register Page, 1 CT 35

Document received by the CA Supreme Court.

Register of Actions

Date	Proceedings	Fee	
Apr-22-2025	EXHIBIT LIST FOR DEFENDANTS FILED		d
Apr-22-2025	JURY INSTRUCTIONS		d
Apr-22-2025	JURY TRIAL SET FOR APR-22-2025 IS HELD AND CONTINUED TO APR-23-2025 AT 9:00 AM IN 504 FOR FURTHER JURY DELIBERATIONS. JUDGE: GARRETT L. WONG; CLERKS: KIM SEPTIEN / R. SAHATJIAN. REPORTER: D. SOUZA CSR#3893 209-629-1921; DMSOUZA@GMAIL.COM, (504).		
Apr-22-2025	SUBMISSIONS BY PLAINTIFF RECEIVED BY THE COURT		d
Apr-23-2025	REMOVED FROM JURY TRIAL CALENDAR SET FOR APR-23-2025 - JURY VERDICT.		
Apr-23-2025	JURY VERDICT		d
Apr-23-2025	ORDER & STIPULATION TO RETURN ALL TRIAL EXHIBITS & DEPOSITIONS TO RESPECTIVE COUNSEL FOR SAFE KEEPING		d
Apr-23-2025	JURY NOTES -DURING DELIBERATION		d
Apr-24-2025	RECEIPT OF RETURNED EXHIBITS		d
Apr-25-2025	THE COURT ORDERED THE FOLLOWING JUDGMENT ON VERDICT ENTERED: IT IS ADJUDGED THAT DEFENDANT ABDELHALIM, SUBHI INDIVIDUALLY, AND DBA SONOMA LIQUOR DOES 1 TO 20 ABDELHALIM, SUBHI RECOVER FROM PLAINTIFF ROSARIO, FRANCISCUS DYLAN		d
Apr-29-2025	NOTICE OF ENTRY OF JUDGMENT (TRANSACTION ID # 76177749)		e
Apr-30-2025	DECLARATION OF ALBERTO REYNA IN SUPPORT OF DEFENDANT SUBHI ABDELHALIM'S MEMORANDUM OF COSTS (TRANSACTION ID # 76186261) FILED BY DEFENDANT ABDELHALIM, SUBHI		e
Apr-30-2025	MEMORANDUM OF COSTS AND DISBURSEMENTS, $76,308.90 TOTAL COSTS, MATURE DATE MAY-22-2025,, (TRANSACTION ID # 76186261) FILED BY DEFENDANT ABDELHALIM, SUBHI		e
Apr-30-2025	PROOF OF SERVICE BY ELECTRONIC MAIL FOR MEMORANDUM OF COST AND DECLARATION (TRANSACTION ID # 76186261) FILED BY DEFENDANT ABDELHALIM, SUBHI		e
May-05-2025	NOTICE OF INTENT AND MOTION FOR NEW TRIAL FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR MAY-28-2025 AT 09:30 AM IN DEPT 504	IFP	d
May-05-2025	DECLARATION OF PLAINTIFF IN SUPPORT OF MOTION FOR NEW TRIAL FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN		d
May-05-2025	NOTICE OF MOTION AND MOTION FOR JUDGMENT NOTWITHSTANDING THE VERDICT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR MAY-28-2025 AT 09:30 AM IN DEPT 504	IFP	d
May-05-2025	DECLARATION OF FRANCISCUS DYLAN ROSARIO IN SUPPORT JNOV MOTION FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN		d
May-05-2025	NOTICE OF MOTION AND MOTION FOR NEW TRIAL FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR MAY-28-2025 AT 09:30 AM IN DEPT 504	IFP	d
May-05-2025	DECLARATION OF FRANCISCUS DYLAN ROSARIO IN SUPPORT MOTION FOR NEW TRIAL FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN		d

Document received by the CA Supreme Court.

Attachment: Complaint Page, 1 CT 44

Document received by the CA Supreme Court.

SHORT TITLE: Rosario v. Abdelhalim, et al.	CASE NUMBER:

Second (number) **CAUSE OF ACTION—General Negligence** Page 5

ATTACHMENT TO [X] Complaint [ ] Cross - Complaint

(Use a separate cause of action form for each cause of action.)

GN-1. Plaintiff *(name):* Franciscus Dylan Rosario

alleges that defendant *(name):* Subhi Abdelhalim, individually, and dba Sonoma Liquor

[x] Does 1 to 20

was the legal (proximate) cause of damages to plaintiff. By the following acts or omissions to act, defendant negligently caused the damage to plaintiff

on *(date)*: February 4, 2021

at *(place)*: Intersection of 5th Street and Tehama Street, San Francisco County, California

(description of reasons for liability):

1. Plaintiff re-alleges all allegations set forth prior and incorporates them herein by reference as though set forth herein.

2. Plaintiff Franciscus Dylan Rosario was riding a scooter northbound on 5th St. in the City/County of San Francisco, State of California. Defendant Abdelhalim and/or DOES 1-20 were traveling southbound 5th St. and attempted a right turn onto Tehama St., directly into the path of Plaintiff, striking Plaintiff and knocking him to the ground. Plaintiff was able to roll from the path of the box truck to avoid being run over by the vehicle. As a result, Plaintiff suffered damages requiring medical attention. Upon information and belief, Defendant Abdelhalim and/or DOES 1-20 did not see Plaintiff before the collision.

3. At the time of the subject incident, Defendant Abdelhalim and DOES 1-20 were driving within the course and scope of their employment with Defendant Sonoma Liquor, which is vicariously liable for the conduct of its employees that caused harm to Plaintiff Rosario.

4. Defendant Abdelhalim and/or DOES 1-20, in the course and scope of their employment with Sonoma Liquor, violated, including but not limited to, California Vehicle Code sections 22107 and 21804(a), which places a legal duty on the driver of a vehicle to yield the right-of-way to all traffic and exercise due care for the safety of anyone. Defendant Abdelhalim and/or DOES 1-20 failed to exercise due care for the safety of Plaintiff Rosario who was on a scooter at all relevant times, violating California Vehicle Code sections 22107 and 21804(a).

5. As a direct and proximate result of Defendant Abdelhalim and or DOES 1-20's violation of sections 22107 and 21804(a), Plaintiff suffered special and general damages in an amount to be determined at trial.

6. Plaintiff's injuries resulted from an incident of the kind that sections 22107 and 21804(a) were designed and adopted to prevent.

7. Plaintiff belongs to the class of persons that sections 22107 and 21804(a) were designed to protect.

8. Plaintiff reserves the right to identify more statutes, regulations, and/or ordinances that Defendants may have violated.

Document received by the CA Supreme Court.